

HOUSE No. 2439

The Commonwealth of Massachusetts

PRESENTED BY:

Kenneth I. Gordon

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to clinical laboratory testing.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kenneth I. Gordon</i>	<i>21st Middlesex</i>	<i>1/14/2025</i>

HOUSE No. 2439

By Representative Gordon of Bedford, a petition (accompanied by bill, House, No. 2439) of Kenneth I. Gordon relative to clinical laboratory testing. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to clinical laboratory testing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 8 of chapter 111D of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting in line 22 after the words “upon the written
3 request of” the following:- the person from whose body the specimen was derived.

4 SECTION 2. Section 8 of Chapter 111D of the General Laws, as appearing in the 2022
5 Official Edition, is further amended by inserting in line 34 after the words “patients” the
6 following:-

7 A laboratory test ordered under this section, regardless of test complexity, as defined
8 under the Clinical Laboratory Improvement Amendments of 1988, shall be conducted by a
9 laboratory that routinely participates in proficiency testing for such offered test in a program
10 approved by the Centers for Medicare and Medicaid Services. This paragraph shall not be
11 construed to mandate proficiency testing for a laboratory test if it is not available from any
12 approved program.